# TANNER v. HATCHER

# 22CV46354

# DEFENDANT’S MOTION TO TAX COSTS

Plaintiffs submitted a Memorandum of Costs after trial. Defendant has brought this motion to tax costs. Plaintiffs made a Code of Civil Procedure (CCP) Section 998 Offer to Compromise for $25,000 on March 17, 2023, but It was not accepted. After trial, the court ordered Judgment in favor of plaintiffs for $30,074.00, i.e., an amount greater than plaintiffs’ pre-trial offer. The submitted Memorandum of Costs included costs associated with John R. Gibson (expert) amounting to $2,525.63 and post-CCP § 998 offer interest of $2,527.40.

The California Supreme Court has established that a plaintiff can recover post-offer costs for an expert witness if three conditions are met: (1) the plaintiff makes an offer to compromise that meets the statutory time and content requirements; (2) the defendant does not accept the offer; and (3) the defendant does not obtain a result in the action that is more favorable than the offer (*Martinez v. Brownco Construction Co*. (2013) 56 Cal.4th 1014, 1020). In assessing these criteria, the recovery of expert fees depends on the reasonableness of the offer, the outcome compared to the offer, and the court's discretion. (*Id.; Gonzalez v. Lew* (2018) 20 Cal.App.5th 155, 160)

The losing party cannot simply argue that the submitted costs were not necessary or reasonable. Rather, the losing party must present evidence to prove that the claimed costs are not recoverable (*Seever v. Copley Press, Inc.* (2006) 141 Cal. App. 4th 1550, 1557). The defendant has not met the burden to establish that the costs are not chargeable or are unreasonable.

In response to defendant’s Motion to Tax Costs, a Declaration of John R. Gibson was submitted, detailing the time the expert witness spent after the expiration of the CCP § 998. No objection to the validity or reasonableness of CCP § 998 offer was made, the services listed in the Declaration of John R. Gibson are reasonable, they relate to post-offer tasks, and were necessary for the trial.

Defendant’s Motion to Tax Costs is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to prepare a formal Judgment in conformity with this Ruling.

# WELLS FARGO BANK, N.A. v. KENDRICK

# 23CF14227

# PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

Plaintiff moves for Summary Judgment. There is no opposition to the motion. The moving party to be granted summary judgment must establish that there is no triable issue of fact and it is entitled to judgment. (*Harman v. Mono General Hospital* (1982) 131 Cal.App.3rd 607, 613.)

Upon reviewing the Separate Statement of Undisputed Material Facts in Support of Plaintiff's Motion for Summary Judgment (Separate Statement) multiple references to supporting evidence for each Cause of Action are present. The plaintiff omitted the Complaint's Second Cause of Action for Breach of Contract (Implied) in the description and numbering of Causes of Action, and then listed the four Common Counts in its Separate Statement as the Second through Fifth Cause of Action. The Court will refer to the causes of action as they are pled in the Complaint.

- <u>First Cause of Action – Breach of Written Contract</u>. Plaintiff cites its Qualified Witness Declaration, Declaration of counsel, and Requests for Admission to support fourteen (14) specific material facts that establish the elements of Breach of Written Contract Cause of Action, that is: defendant applied for credit card; card issued with Customer Agreement; card used; payments and charges were made; monthly statements sent; no billing disputes made; last payment made June 20, 2022: and balance due $24,615.60.

- <u>Second Cause of Action – Breach of Contract (Implied).</u> Omitted from Separate Statement of Undisputed Material Facts in Support of Plaintiff's Motion for Summary Judgment.

- <u>Third Cause of Action for Money Lent</u>. Plaintiff cites its Qualified Witness Declaration, Declaration of counsel, and Requests for Admission to support seven (7) specific material facts that establish the elements of Money Lent Cause of Action, that is: plaintiff issued a credit card; pursuant to agreement charges reflected money lent by plaintiff; defendant promised to repay charges (loans); no challenges to credit card statements; balance due $24,615.60.

- <u>Fourth Cause of Action for Money Paid</u>. Plaintiff cites its Qualified Witness Declaration, Declaration of counsel, and Requests for Admission to support six (6) specific material facts that establish the elements of Money Paid Cause of Action, that is: Plaintiff issued card; pursuant to agreement money was paid on behalf of defendant as charges made; defendant agreed to repay principal and